

13 May 2026

Hon Tama Potaka
Minister of Conservation

By email: T.Potaka@ministers.govt.nz

Tēnā koe Minister,

Conservation Amendment Bill: Economic considerations

1. We write in relation to the Conservation Amendment Bill (Bill) introduced on Friday 7 May 2026 and, in particular, the new clauses which explicitly recognise economic opportunities from the use and development of land and resources managed by the Department of Conservation (Department) and task the Department with enabling use and development to the “greatest extent practicable”. We will be addressing the balance of the Bill in our submission to the Select Committee.
2. We are alarmed and deeply disappointed by these economically focussed clauses. They were not discussed during engagement on development of the Bill, and appear to have been included as a result of a last-minute direction from Cabinet to enable greater economic development on conservation land.
3. The Department’s analysis of these clauses says the changes are intended to be a “minor shift”¹ that will benefit a small number of less economically significant activities and that “conservation will remain the primary purpose of the Conservation Act.”²
4. It states the changes are intended to enable economic development “that is not inconsistent with conservation”³ and while “protecting conservation values”⁴ and “preserving conservation outcomes.”⁵
5. This seems to reflect the approach you support: “The Minister advised that he did not see a strong case for a shift away from conservation as the primary purpose of the system.”⁶ We endorse your position.
6. The current drafting of the Bill does not, however, give effect to your intended approach. The economically focussed clauses of the Bill represent a significant departure from the status quo which currently gives primacy to conservation.

¹ Supplementary Analysis Report: Amending the purpose of the Conservation Act 1987 at [50] and Summary: Option 1, Benefits.

² Ibid at Summary: Option 1, Benefits.

³ Ibid at Summary: Problem definition and options and Summary: Option 1, Costs.

⁴ Ibid at Summary: Problem definition and options.

⁵ Ibid at [17].

⁶ Ibid at [24].

7. The clauses of concern include:
- a. Clause 6, amendments to section 6 of the Conservation Act (functions of Department);
 - b. Clause 15, proposed new section 13D(2) (purpose of the National Conservation Policy Statement (NCPS));
 - c. Clause 15, proposed new section 13H(2)(b) (purpose of Area Plans); and
 - d. Clause 23, proposed new section 14 (purpose of concessions framework).
8. EDS recommends amendments to, or deletion of, these clauses as set out below. The changes recognise limited economic development opportunities for public conservation land when consistent with conservation imperatives. We consider they better reflect your policy objectives for the Bill.

Department's functions

9. The Department's functions are set out in section 6 of the Conservation Act. They currently include managing land for conservation purposes and providing for recreation and tourism when not inconsistent with the conservation of natural or historic resources.
10. Clause 6 of the Bill introduces a new economically focussed function to:⁷
- “6(ea) recognise the economic opportunities that arise from the use and development of land and other natural resources and historic resources managed by the Department, and to enable this use and development to the greatest extent practicable under this Act and other enactments”*
11. EDS does not, in principle, have an issue with expanding the Department's functions to acknowledge there are limited economic opportunities associated with land and other resources managed by the Department where compatible with conservation. Public conservation land is already used extensively for economic purposes, with thousands of active concessions.
12. However:
- a. The term “economic opportunities” is not defined and would appear to capture a wide range of economic activities such as tourism, grazing, mining and infrastructure.⁸
 - b. It is not limited by “minor” or “insignificant” descriptors and cannot, therefore, be assumed to only provide for less economically significant activities, on the basis that significant economic activities will progress via other legislative regimes (ie, fast-track).

⁷ Conservation Amendment Bill, clause 6 (new section 6(ea)).

⁸ Recreation is covered by another proposed new function to “foster the use of land and other natural resources and historic resources managed by the Department for recreation to the extent consistent with their conservation”, see clause 6 of the Bill, new section 6(e). It may be that “economic opportunities” in proposed new section 6(ea) is not therefore intended to include recreation-based activities.

- c. As the Department points out, current settings may have deterred some potential operators from applying for concessions under the Conservation Act and “the exact nature of activities enabled through the changes is unclear.”
- d. There is no hierarchy between the Department’s functions, so this new function will sit alongside the existing ones, on equal footing. This is at odds with your rejection of a balancing approach to conservation and economic development outcomes.⁹
- e. Unlike proposed new section 6(e), relating to the fostering of recreation, the new economic purpose is not qualified by ‘consistency with conservation’. Indeed, inclusion of the qualifier in proposed section 6(e), and not section 6(ea), appears to be deliberate drafting to ensure that economic opportunities are not subject to conservation matters.
- f. The words “to enable this use and development to the greatest extent practicable under this Act and other enactments” could be interpreted as directing the Department to enable economic activity to its maximum potential, irrespective of conservation outcomes.
- g. This all means that assertions the Department’s proposed new economic function will only enable economic development when consistent with conservation, or that conservation will take primacy, is blatantly wrong.

13. EDS seeks the following amendments to the Bill:

The functions of the Department are to ...

“6(ea) recognise that limited the economic opportunities that arise from the use and development of land and other natural resources and historic resources managed by the Department, and to enable this use and development to the greatest extent practicable under this Act and other enactments to the extent consistent with their conservation.”

New purpose of conservation policy and plans

- 14. The Bill streamlines conservation management planning, giving effect to many of the recommendations set out in EDS’s independent review of the conservation system.¹⁰ It provides for a consolidated National Conservation Policy Statement (NCPS) and for Area Plans.
- 15. The Bill states that the purpose of these instruments is to create policy for the Acts listed in section 13A(2)¹¹ and to:¹²

“recognise the economic opportunities that arise from the use and development of land and other natural resources and historic resources managed by the Department, and to enable this use and development to the greatest extent practicable under those Acts.

⁹ Supplementary Analysis Report: Amending the purpose of the Conservation Act 1987, Option 2.

¹⁰ D Koolen-Bourke, R Peart, B van Uitregt and C Dowsett, 2024, Restoring Nature: Reform of the Conservation Management System, Environmental Defence Society Inc. available [here](#).

¹¹ And, for Area Plans, for the Hauraki Gulf Marine Park Act 2000, see cl 13H(2)(a)(ii).

¹² Conservation Amendment Bill, clause 15 (proposed new section 13D(2)(b) and 13H(2)(b)).

16. We note:

- a. There is no section 13A(2) in the Bill, but assume it would have referred to the Conservation Act, the National Parks Act, the Reserves Act and the Wildlife Act.
 - b. The purpose of the NCPS and Area Plans is an exclusive list. Expressly including provision for economic opportunities as a purpose, and not including any conservation-related direction, will elevate economic opportunities above conservation outcomes.
 - c. Including economic opportunities as a purpose creates uncertainty about how a policy set for a section 13A(2) Act (assumed to be a conservation law) interfaces with an economic direction. In the event of a conflict, there is a high risk that the direction to enable use and development under those Acts to the greatest extent practicable would take precedence, irrespective of the conservation outcomes. That is because it is explicitly listed, whereas other conservation outcomes are not.
 - d. It could even be inferred that conservation outcomes are not relevant to a NCPS or Area Plans, given:
 - i. NCPSs and Area Plans are made by the Minister, not the Department (with its attendant section 6 conservation functions);
 - ii. The Conservation Act has no purpose section that provides overall direction to the Minister to prioritise conservation outcomes when making these instruments;
 - iii. Proposed clause 13D(3) states “to this end, the NCPS may”, meaning the content of a NCPS is constrained by the economic direction in the purpose of a NCPS. Thus the direction to provide for use and development to the greatest extent practicable applies to descriptions of how consistent an activity is with an area¹³ and what kinds of activities are pre-approved or exempt from requiring a concession.¹⁴
 - iv. Area Plans must be consistent with NCPSs,¹⁵ so the issues perpetuate.
17. Other aspects of the Bill will enable greater economic activity, above what is already provided for, including pre-approved and exempt activities and an opportunity for applicants to apply to change Area Plans (akin to a private plan change in the resource management system).
18. Further explicit recognition of economic opportunities in relation to the purpose of the NCPS or Area Plans is unnecessary.
19. **EDS seeks that proposed new sections 13D(2)(b) and 13H(2)(b) be deleted from the Bill.**

¹³ Conservation Amendment Bill, proposed new section 13D(3)(c).

¹⁴ Conservation Amendment Bill, proposed new section 13D(3)(d).

¹⁵ Conservation Amendment Bill, proposed new section 13H(4)(a).

Concessions framework

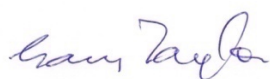
20. The Bill creates a new concessions framework, the purpose of which is to provide the Minister with discretion to recognise the economic opportunities from use and development of conservation resources and land managed by the Department and enable their use and development to the greatest extent practicable.¹⁶
21. This approach:
- a. Suffers from the same issues set out above, in that there is no corresponding directive for use and development to be consistent with conservation objectives or outcomes. It is a one-sided approach which prioritises economic opportunities.
 - b. Does not address how conflicts will be resolved when, for example, a concession enables economic use or development but conflicts with another conservation provision.¹⁷ There is a high risk that economic opportunities would take precedence because they are explicitly referred to, and conservation outcomes are not.
 - c. Does not clarify what 'to the greatest extent practicable' means. The Bill does not include any environmental limits which might provide guardrails.

22. **EDS seeks that proposed new section 14(1) be deleted from the Bill.**

Conclusion

23. While others were quick to comment on the Bill on Friday, we deliberately decided to review it in detail before providing comment, to ensure our feedback was fully informed.
24. We have since reviewed the Bill, the Departmental Disclosure Statement, and the Supplementary Analysis Report on amending the purpose of the Conservation Act. Coupled with our previous work and engagement with officials, our comments above are therefore nuanced and considered. We ask that you give them serious consideration.
25. We will be filing a comprehensive submission to the Select Committee on the entirety of the Bill. In this letter, we wanted to focus at this early stage on the most concerning aspects that seem to have slipped in at the last minute and bring them to your attention.
26. We look forward to discussing this further with you at our next meeting on 20 May 2026.

Ngā mihi nui



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¹⁶ Conservation Amendment Bill, clause 23 (proposed new section 14).

¹⁷ Which would arise under, for example, clause 23 (proposed new section 14Z(1)(a)) of the Conservation Amendment Bill.